

Karasi Anupama vs Karasi Anil Kumar on 19 November, 2020

Author: Battu Devanand

Bench: Battu Devanand

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THE HON'BLE SRI JUSTICE BATTU DEVANAND

CIVIL REVISION PETITION NO. 858 of 2020

O R D E R:

This Civil Revision Petition is directed against the order, dated 30.12.2019 in I.A.No.52 of 2019 in MOP.No.93 of 2018 on the file of the Additional Senior Civil Judge, Srikakulam.

2) Heard Smt. T. Radha Rani, learned counsel for the petitioner.

3) In compliance of the order, dated 18.06.2020 of this Court, the counsel for the petitioner has issued personal notice to the respondent. A memo of proof of service was filed on 03.09.2020 in which it was stated that the notice sent to the respondent was "returned unclaimed" as per the endorsement made by the Postal Department. In the light of the decision of the Hon'ble Supreme Court of India in M/s. Madan & Co. vs. Wazir Jaivir Chand¹ and the decision of this High Court in Namala Ramachandra Rao v. Kakileti Bhaskara Rama Murthy and others² it has to be presumed that the notice has been served on the respondent.

4) The petitioner is wife and the respondent is husband. AIR 1989 SC 630 2004(2) ALD 558

5) The case of the petitioner is that the marriage of the petitioner and respondent was performed on 25.03.2016 and they were blessed with a female child on 06.01.2017. The respondent and his parents harassed her physically and mentally after birth of female child and they used to demand dowry from her and she was necked out from her matrimonial house. The respondent did not take the petitioner along with him to Hyderabad where he has been working. She is not having any individual source of income to maintain herself and her daughter and the respondent is working as a Software Engineer and getting salary of Rs.1,00,000/- per month and he has to maintain the petitioner and her daughter.

6) The petitioner filed MOP No.93 of 2018 on the file of Additional Senior Civil Judge, Srikakulam under Section 9 of Hindu Marriage Act, 1956 with a prayer for restitution of conjugal rights and to direct the respondent to take back the petitioner along with her daughter to lead conjugal life happily. In the said original application the petitioner filed an interlocutory application in I.A.No.52 of 2019 seeking to grant interim maintenance for an amount of Rs.25,000/- per month to her and Rs.15,000/- per month to her daughter. A counter has been filed by the respondent in the said

interlocutory application.

7) The Court below after hearing both sides, dismissed the interlocutory application filed for interim maintenance on 30.12.2019. Aggrieved by the same, the present Civil Revision Petition is filed.

8) On perusal of the order of the Court below, it appears that admittedly, the petitioner and respondent are wife and husband and they are making rival allegations against each other, which cannot be decided at the stage of interlocutory application as their points to be decided at the time of enquiry on evidence as rightly pointed out by the Court below.

9) It can be seen from the impugned order, while dismissing the interlocutory application the Court below held that the Exhibits R.1 to R.3 documents filed by the respondent categorically show that the respondent has been paying Rs.5,000/- per month towards maintenance to the petitioner by way of money orders. In our view, the Court below failed to consider the main aspect.

10) As per the averments made in the original application and interlocutory application, it appears that in the month of May, 2017 the petitioner along with her tender aged daughter were necked out from the matrimonial home. So, it is clear that from the month of May, 2017 the petitioner and her daughter are living on the mercy of others. It appears in the month of June, 2018 MOP No.93 of 2018 was filed for restitution of conjugal rights and in the month of July, 2019 the petitioner filed interlocutory application seeking to grant interim maintenance.

11) As seen from the Exhibits R.1 to R.3 for the month of July, August and September, 2019, the respondent sent Rs.5,000/- per month by way of money order to the petitioner. It is not clear on record for what purpose the respondent sent this amount by way of money order. There is no any evidence on record to prove that whether the said amount of Rs.5,000/- per month was sent towards payment of interim maintenance or it was sent as a gift to his daughter towards his love and affection. If really the respondent intends to support the petitioner and their daughter by paying some amount, he has to pay the same from the month of May 2017 or at least from the month of June 2018 when the original petition is filed seeking restitution of conjugal rights. As such, it is categorically established that he sent the amount of Rs.5,000/- per month by way of money order only after filing of I.A.No.52 of 2019 which was filed for seeking interim maintenance. It is further to be noted that even without any order of any Court to pay him Rs.5,000/- per month towards interim maintenance, he sent that amount and it appears that the respondent decided what would be the amount to be granted by the Court towards interim maintenance of the petitioner and their child.

12) The Court below without considering all these aspects and simply relying on Exs.R.1 to R.3 and came to a conclusion that the respondent did not neglect the petitioner and their daughter and dismissed the application filed by the petitioner on condition that the respondent shall continue to pay Rs.5,000/- per month towards interim maintenance to the petitioner and her daughter. It appears the Court below agreed for the amount fixed by the respondent himself for payment of interim maintenance to the petitioner and her daughter and also the Court below failed to consider factual position whether the said amount of Rs.5,000/- per month is sufficient to maintain the petitioner herself and for the expenses to be incurred for three years baby.

13) Admittedly, the respondent is a Software Engineer and the averments made in the counter filed in the Court below in I.A.No.52 of 2019 establishes his attitude. As per his own admissions in the said counter-affidavit, he is paying house rent of Rs.8,300/- and he is paying car loan for an amount of Rs.9,500/- and also used to pay Rs.10,000/- to his old aged parents. But he is paying Rs.5,000/- only per month to his wife and daughter for their survival.

14) In the opinion of this Court, in the present day situation and having regard to the cost of living, it is extremely very difficult to a woman to manage her necessities and to meet the expenses of three years baby with a meager amount of Rs.5,000/- per month. In our view the petitioner should not be allowed to feel that their survival itself has become difficult. As per the settled law the petitioner and her daughter are entitled to lead a life in the similar manner as they would have lived in the house of her husband/father.

15) The Hon'ble Apex Court in Bhuwan Mohan Singh v. Meena and Ors³ held in para No.3 as under:

"Be it ingeminated that Section.125 of the Cr.P.C was conceived to ameliorate the agony, anguish, financial suffering of a woman who left her matrimonial home for the reasons provided in the provision so that some suitable arrangements can be made by the Court and she can sustain herself and also her children if they are with her. The concept of sustenance does not necessarily mean to lead the life of an animal, feel like an unperson to be thrown away from grace and roam for her basic maintenance somewhere else. She is entitled in law to lead a life in the similar manner as she would have lived in the house of her husband. That is where the status and strata come into play, and that is where the obligations of the husband, in the case of wife, become a prominent one. In a proceeding of this nature, the husband cannot take subterfuges to AIR 2014 Supreme Court 2875 deprive her of the benefit of living with dignity. Regard being had to the solemn pledge at the time of marriage and also in consonance with the statutory law that governs the field, it is the obligation of the husband to see that the wife does not become a destitute, a beggar. A situation is not to be maladroitly created whereunder she is compelled to resign to her fate and think of life "dust unto dust".

It is totally impermissible. In fact, it is the sacrosanct duty to render the financial support even if the husband is required to earn money with physical labour, if he is able bodied. There is no escape route unless there is an order from the Court that the wife is not entitled to get maintenance from the husband on any legally permissible grounds."

16) Further, a Two-Judge Bench of Hon'ble Apex Court in Kirtikant D.Vadodaria v. State of Gujarat and another⁴ held as under:

"While dealing with the ambit and scope of the provision contained in Section 125 of the Code, it has to be borne in mind that the dominant and primary object is to give social justice to the woman, child and infirm parents etc., and to prevent destitution and vagrancy by compelling those who can support those who are unable to support

themselves but have a moral claim for support. The provisions in Section (1996) 4 SCC 479 125 provide a speedy remedy to those woman, children and destitute parents who are in distress.

The provisions in Section 125 are intended to achieve this special purpose. The dominant purpose behind the benevolent provisions contained in Section 125 clearly is that the wife, child and parents should not be left in a helpless state of distress, destitution and starvation."

17) The Hon'ble Apex Court while dealing a Criminal Appeal arises out of an application for interim maintenance filed under Section 125 of Cr.P.C. in *Rajnesh vs. Neha* and another⁵ observed as thus:

"Maintenance Laws have been enacted as a measure of social justice to provide recourse to dependant wives and children for the financial support, so as to prevent them from falling into destitution and vagrancy."

18) The Hon'ble Apex Court while dealing with the issue of payment of interim maintenance enumerated in Part-B (II) of the judgment and in exercise of powers under Article 136 and Article 142 of the Constitution of India framed guidelines and the relevant paras are extracted as under:

Keeping in mind the need for a uniform format of Affidavit of Disclosure of Assets and Liabilities to be filed in maintenance 2020 SCC OnLine SC 903 proceedings, this Court considers it necessary to frame guidelines in exercise of our powers under Article 136 read with Article 142 of the Constitution of India:

(a) The Affidavit of Disclosure of Assets and Liabilities annexed at Enclosures I, II and III of this judgment, as may be applicable, shall be filed by the parties in all maintenance proceedings, including pending proceedings before the concerned Family Court / District Court / Magistrate's Court, as the case may be, throughout the country;

(b) The applicant making the claim for maintenance will be required to file a concise application accompanied with the Affidavit of Disclosure of Assets;

(c) The respondent must submit the reply along with the Affidavit of Disclosure within a maximum period of four weeks. The Courts may not grant more than two opportunities for submission of the Affidavit of Disclosure of Assets and Liabilities to the respondent. If the respondent delays in filing the reply with the Affidavit, and seeks more than two adjournments for this purpose, the Court may consider exercising the power to strike off the defence of the respondent, if the conduct is found to be willful and contumacious in delaying the proceedings.³² On the failure to file the Affidavit within the prescribed time, the Family Court may proceed to decide the application for maintenance on basis of the Affidavit filed by the applicant and the pleadings on record;

(d) The above format may be modified by the concerned Court, if the exigencies of a case require the same. It would be left to the judicial discretion of the concerned Court, to issue necessary directions in this regard.

(e) If apart from the information contained in the Affidavits of Disclosure, any further information is required, the concerned Court may pass appropriate orders in respect thereof.

(f) If there is any dispute with respect to the declaration made in the Affidavit of Disclosure, the aggrieved party may seek permission of the Court to serve interrogatories, and seek production of relevant documents from the opposite party under Order XI of the CPC;

On filing of the Affidavit, the Court may invoke the provisions of Order X of the C.P.C or Section 165 of the Evidence Act 1872, if it considers it necessary to do so; The income of one party is often not within the knowledge of the other spouse. The Court may invoke Section 106 of the Evidence Act, 1872 if necessary, since the income, assets and liabilities of the spouse are within the personal knowledge of the party concerned.

(g) If during the course of proceedings, there is a change in the financial status of any party, or there is a change of any relevant circumstances, or if some new information comes to light, the party may submit an amended / supplementary affidavit, which would be considered by the court at the time of final determination.

(h) The pleadings made in the applications for maintenance and replies filed should be responsible pleadings; if false statements and misrepresentations are made, the Court may consider initiation of proceeding u/S. 340 Cr.P.C., and for contempt of Court.

(i) In case the parties belong to the Economically Weaker Sections ("EWS"), or are living Below the Poverty Line ("BPL"), or are casual labourers, the requirement of filing the Affidavit would be dispensed with.

(j) The concerned Family Court / District Court / Magistrate's Court must make an endeavour to decide the I.A. for Interim Maintenance by a reasoned order, within a period of four to six months at the latest, after the Affidavits of Disclosure have been filed before the court.

19) The Hon'ble Apex Court in Rajnesh's case (5 supra) in Part- B (VI) while passing final directions with respect to the payment of interim maintenance directed as under:

"Payment of Interim Maintenance The Affidavit of Disclosure of Assets and Liabilities annexed as Enclosures I, II and III of this judgment, as may be applicable, shall be filed by both parties in all maintenance proceedings, including pending proceedings before the concerned Family Court / District Court/ Magistrates Court, as the case may be, throughout the country."

20) In view of the opinion of this Court as stated above and in the light of the findings of the Hon'ble Apex Court stated supra, this Court is of the opinion that this is a fit case to set aside the order of the Court below and to remit back to the trial Court for fresh consideration in the light of the directions issued in the judgment of the Hon'ble Apex Court in Rajnesh's case (5 supra).

21) Accordingly, the present Civil Revision Petition is allowed with the following directions:

(i) The order, dated 30.12.2019 in I.A.No.52 of 2019 in MOP No.93 of 2018 on the file of the Additional Senior Civil Judge, Srikakulam is hereby set aside;

(ii) I.A.No.52 of 2019 is restored and remanded back to the Court of the Additional Senior Civil Judge, Srikakulam for fresh consideration and disposal in accordance with law;

(iii) The Additional Senior Civil Judge, Srikakulam shall follow the procedure laid down by the Hon'ble Apex Court in Rajnesh's case (5 supra) enumerated in Part-

B (II) with regard to payment of interim maintenance.

(iv) In view of the fact that I.A.No.52 of 2019 was filed in the month of July, 2019 and it was dismissed on 30.12.2019 and the said I.A. is remitted back by this order, considering the time consumed from filing of the said I.A. to till date, the Additional Senior Civil Judge, Srikakulam is directed to dispose of I.A.No.52 of 2019 as expeditiously as possible, preferably within two (2) months from today.

22) There is no order as to costs.

As a sequel, miscellaneous petitions, if any, pending in this petition shall stand closed.

JUSTICE BATTU DEVANAND Dt. 19.11.2020 Note: Issue CC tomorrow.

B/o PGR